

26TRCV00729 26TRCV00729

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-06-25

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Case Number: 26TRCV00729 Hearing Date: June 25, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department 5

228th Street Associates, LP

Plaintiff,

vs.

Gosmart, Inc., et al.,

Defendants.

Case No.:

26TRCV00729

Hearing Date:

May 21, 2026

Time:

8:30 a.m.

[tentative] Order RE:

DEFENDANT GOSMART, INC. AND JAE SON'S DEMURRER TO COMPLAINT OF PLAINTIFF 228th Street Associates, LP

MOVING PARTY: Defendants, GoSmart, Inc., dba Design Support, and Jae Son

RESPONDING PARTY: Plaintiff, 228th Street Associates, LP

Defendants GoSmart, Inc. and Jae Son's Demurrer to Complaint of Plaintiff 228th Street Associates, LP, is SUSTAINED WITHOUT LEAVE TO AMEND as to Plaintiff's claim against GoSmart, Inc. for unpaid rent pursuant to Code of Civil Procedure section 430.10.

The Court considers the moving papers filed on April 1, 2026, the opposition brief filed on May 8, 2026, the reply brief filed on May 14, 2026, and the supplemental brief filed on June 10, 2026.

BACKGROUND

Factual Background

On March 2, 2026, plaintiff 228th Street Associates, LP ("Plaintiff") filed a Complaint against defendants GoSmart, Inc., dba Design Support, Jae Son, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Breach of Contract; (2) Breach of Guaranty; and (3) Common Counts.

On April 1, 2026, defendants GoSmart, Inc. and Jae Son ("collectively, Defendants") filed Judicial Form CIV-140. In this form, their counsel Jeffrey S. Flashman stated, "At least five days before the date a responsive pleading was due to be filed ..., I met and conferred with the party who filed the pleading by telephone ... and we did not reach an agreement resolving the matters raised by the demurrer, motion to strike, or motion for judgment on the pleadings." (CIV-140, ¶ 2a.)

Procedural Background

On April 1, 2026, Defendants filed this demurrer. On May 8, 2026, Plaintiff filed an opposition brief. On May 14, 2026, Defendants filed a reply brief.

On May 21, 2026, the Court held a hearing on the matter and chose not to adopt its tentative ruling. (May 21, 2026 Minute Order, p. 8.) The Court allowed Defendants to submit supplemental papers regarding *Tennison v. California Victims Comp. & Government Claims Bd.* (2007) 152 Cal.App.4th 1164 by June 10, 2026. (May 21, 2026 Minute Order, p. 8.) Any supplemental opposition papers from Plaintiff should be filed and served by June 17, 2026. (May 21, 2026 Minute Order, p. 8.)

On June 10, 2026, GoSmart, Inc. filed its supplemental brief. As of now, Plaintiff has not filed a supplemental opposition brief.

REQUEST FOR JUDICIAL NOTICE

Filed concurrently with their moving papers, Defendants have filed a Request for Judicial Notice ("RJN"), requesting this Court take judicial notice of:

Plaintiff's Complaint in Case No. 25IWUD00762, Exhibit A; and

Unlawful Detainer Stipulation and Judgment in Case No. 25IWUD00762, Exhibit B.

The Court GRANTS this request. The Court takes judicial notice of these documents as "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States[.]" in accordance with Evidence Code section 452, subdivision (d). However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See *L.B. Research & Education Foundation v. UCLA Foundation* (2005) 130 Cal.App.4th 171, 180, fn. 2, citing *Comings v. State Bd. of Education* (1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer, the moving party is required to meet and confer in person, by telephone, or via video conference with the party who filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer. (Code Civil Proc., § 430.41, subd. (a)(4).)

On April 1, 2026, defendants GoSmart, Inc. and Jae Son ("collectively, Defendants") filed Judicial Form CIV-140. In this form, their counsel Jeffrey S. Flashman stated, "At least five days before the date a responsive pleading was due to be filed ..., I met and conferred with the party who filed the pleading by telephone ... and we did not reach an agreement resolving the matters raised by the demurrer, motion to strike, or motion for judgment on the pleadings." (CIV-140, ¶ 2a.)

Consequently, the Court finds that Defendants sufficiently met and conferred in good faith prior to filing this demurrer.

DISCUSSION

On May 21, 2026, the Court convened a hearing in this matter but opted not to adopt its tentative ruling. (May 21, 2026 Minute Order, p. 8.) The Court found that *res judicata* does not bar the entirety of Plaintiff's action, and that collateral estoppel

does not preclude Plaintiff from pursuing a claim for past rent. (May 21, 2026 Minute Order, pp. 6-7.) However, following oral arguments presented by Defendants' counsel, the Court allowed Defendants to submit supplemental papers regarding *Tennison v. California Victims Comp. & Government Claims Bd.* (2007) 152 Cal.App.4th 1164 by June 10, 2026. (May 21, 2026 Minute Order, p. 8.) Plaintiff was required to file and serve any supplemental opposition papers by June 17, 2026. (May 21, 2026 Minute Order, p. 8.)

In its supplemental briefing, GoSmart, Inc. "acknowledges that Plaintiff's property damages claims would survive the demurrer, which is [now] aimed solely at the unpaid rent cause of action." (Suppl., p. 1:16-17.) Consequently, the Court will evaluate whether issue preclusion bars Plaintiff from seeking payment for the unpaid rent.

"Collateral estoppel, or issue preclusion, 'precludes relitigation of issues argued and decided in prior proceedings.' " (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896.) Issue preclusion applies "only: (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. [Citation.] " (*Samara v. Matar* (2018) 5 Cal.5th 322, 327.) "[T]he term 'issue' ... is difficult to define, and the pleadings and proof in each case must be carefully scrutinized to determine whether a particular issue was raised even though some legal theory, argument or 'matter' relating to the issue was not expressly mentioned or asserted." (*Clark v. Leshner* (1956) 46 Cal.2d 874, 880-881.) "This scrutiny includes looking behind the findings at the evidence presented to determine what was actually decided. [Citation.] The party asserting collateral estoppel must prove the issue was raised, actually submitted for determination and determined and that contrary evidence on the issue was not restricted." (*Schaefer/Karpf Productions v. CNA Ins. Co.* (1998) 64 Cal.App.4th 1306, 1313.)

"As a general matter in such cases, collateral estoppel will only apply if the party to be bound agreed expressly or impliedly to submit an issue to prior adjudication ... and had a full and fair opportunity to litigate ... under circumstances affording due process protections." (*Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1327, internal citations omitted.) However, "a stipulated judgment may properly be given collateral estoppel effect, at least when the parties manifest an intent to be collaterally bound by its terms." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 665 (CSAA).) "Since CSAA was decided, courts have taken the position that a stipulated judgment may be given preclusive effect only when the parties manifest an intent for it to do so." (*Tennison v. California Victims Comp. & Government Claims Bd.* (2007) 152 Cal.App.4th 1164, 1173.)

While numerous courts have established that a stipulated judgment may receive preclusive effect only with manifested intent, they have restricted this requirement to particular circumstances. In *Landeros v. Pankey* (1995) 39 Cal.App.4th 1167, 1172, the Court of Appeal acknowledged the principle that "a consent judgment is not usually given preclusive effect in subsequent litigation on a different cause of action, unless the parties manifest an intent in the consent judgment to give it such preclusive effect." The Court of Appeal in *Rice v. Crow* (2000) 81 Cal.App.4th 725, 737, fn. 1, acknowledged the same principle. Therefore, the requirement for manifestation applies solely when there is subsequent litigation concerning a different cause of action. If the cause of action or issues remain consistent, the party asserting issue preclusion need not demonstrate manifestation. By stipulating to specific issues without restricting the scope of the stipulated judgment, parties are collaterally estopped from further litigation on that issue. (CSAA, supra, 50 Cal.3d at p. 664, fn. 2.)

Here, Defendants have judicially noticed the Unlawful Detainer Stipulation and Judgment from 228th Street Associates, LP v. GoSmart, Inc., Case No. 25IWUD00762. (RJN, Exh. B.) The stipulation demonstrates that Department 8 of the Inglewood Courthouse rendered a decision in favor of 228th Street Associates, LP, against GoSmart, Inc. (RJN, Exh. B.) The Court established that GoSmart, Inc. is liable for the following: (1) \$0.00 in past due rent, (2) \$35,000.00 in holdover damages, (3) an indeterminate amount of attorney's fees, which will be resolved in a motion, and (4) an indeterminate amount of costs, also subject to a motion. (RJN, Exh. B.) Furthermore, 228th Street Associates, LP was awarded possession of the premises located at 1450 W. 228th Street, Units 14 & 15, Torrance, CA 90501. (RJN, Exh. B.) GoSmart, Inc.'s security deposit was required to be returned and appropriately accounted for by 228th Street Associates, LP, within twenty-one days following the vacation of the premises. (RJN, Exh. B.)

The stipulated judgment clearly indicates that GoSmart, Inc. is not liable for any unpaid rent to Plaintiff. Furthermore, since the stipulated judgment is not confined in scope, Plaintiff's current claim against GoSmart, Inc. for unpaid rent is barred by the doctrine of collateral estoppel.

Accordingly, the Defendants' demurrer to Plaintiff's claim against GoSmart, Inc. for unpaid rent is SUSTAINED, and Leave to Amend is DENIED.

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ORDERS

Defendants GoSmart, Inc. and Jae Son's Demurrer to Complaint of Plaintiff 228th Street Associates, LP, is SUSTAINED WITHOUT LEAVE TO AMEND as to Plaintiff's claim against GoSmart, Inc. for unpaid rent.

Defendants are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: 2 June 26, 20262

Tamara Hall

Judge of the Superior Court